This was stated as its very objective in so many words," says Supreme Court advocate Shadan Farasat. "To allow a prima facie examination of a site, in a very contentious atmosphere, defeats the very purpose of the Act. What would remain of it?" Any kind of case can now be reopened, he says—even sites where, say, one Hindu sect or sovereign made an ingress on the temple of another—and an avalanche of cases could erupt across the map.

The case prompted a laser-focused examination of the Places of Worship Act, and its decree on the status quo as on August 15, 1947. Besides the outright challenge by Upadhyay, Hindutva lawyers have zeroed in on what they see as points of infirmity in its clauses. One, they say, any remains of a destroyed temple—such as the putative Shivalingam at Gyanvapi—would count as architectural relics. Two, such remains, if proved authentic, would naturally predate 1947, and thus form part of the "status quo". The third deploys a British colonial-vintage oddity in Indian law (with medieval European antecedents dating to the Crusades)—the idea of a deity as a "juristic person" with rights, an abstract entity who can file a suit through the good offices of "next friends". Here, they say the Adi Vishweshwara deity's title rights to the site cannot be deemed to have been extinguished by the mere fact of the temple edifice being broken down.

Even if these arguments were to be accepted, they presume a place of worship of one religion supplanted that of another: clear enough in some cases, not so in innumerable others. Lucknow-based lawyer Hari Shankar Jain, on whose 1993 plea the gates of the Ayodhya site

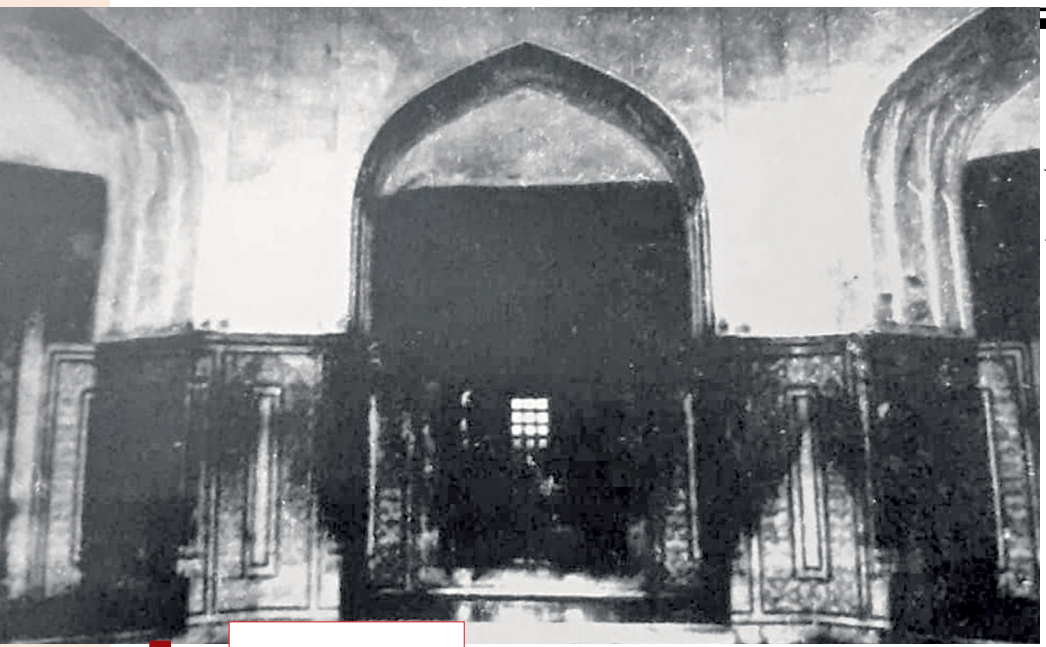


Photo Courtesy SIRAJ QURESHI



built by Hindu ruler Jai Singh I centuries before the Mughals arrived.

AGRA

TAJ MAHAL

WHAT LIES BENEATH

THE CONTROVERSY

Right-wing groups and revisionist dabblers in history have intermittently claimed that the Taj Mahal was once a Hindu Shiva temple named 'Tejo Mahalaya'. The claims are rooted in self-styled historian P.N. Oak's book *Taj Mahal: The True Story* (1989), which claimed that the original structure was most likely

WHO'S BEHIND IT

Recently, BJP leader Rajneesh Singh filed a petition, demanding that a fact-finding panel establish "the real history of Taj Mahal", and examine 22 sealed rooms for the possible presence of Hindu gods' idols. Before him, BJP leaders Kapil Mishra (in 2020) and Vinay Katiyar (2017) had made similar claims. Diya Kumari, BJP MP from Rajsamand and a member of the erstwhile royal family of Jaipur, has recently claimed that the land on which the Taj Mahal stands belonged